

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 21, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**GRANT ANDREW ANDERSON vs. FORD MOTOR COMPANY; ET AL.
Case No. CU25-08144**

FORD FAIRFIELD's Motion to Compel Arbitration

TENTATIVE RULING

Defendant PRICE-SIMMS FORD LLC - FORD LINCOLN FAIRFIELD ("FORD FAIRFIELD") moves to compel arbitration of Plaintiff GRANT ANDREW ANDERSON's complaint alleging violations of the Song-Beverly Consumer Warranty Act and breach of the implied warranty of merchantability. Plaintiff's complaint alleges that his 2020 Ford Expedition (the "Vehicle") has a transmission defect FORD FAIRFIELD and Defendant FORD MOTOR COMPANY have failed to conform to warranty.

Timeliness of Opposition. Opposition to a motion is due nine court days before the hearing date. (Code Civ. Proc., § 1005, subd. (b).) In this case Plaintiff's opposition was due July 8, 2026, the hearing being on July 21, 2026. Opposition was not filed until July 13, 2026, the day before FORD FAIRFIELD's reply was due. Plaintiff's opposition was significantly late, to FORD FAIRFIELD's prejudice. The court exercises its discretion to disregard Plaintiff's untimely filed opposition.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v.*

Applied Underwriters Captive Risk Assurance Co. (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*.) Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

FORD FAIRFIELD presents evidence that an arbitration agreement exists between it and Plaintiff as part of the retail sales installment contract by which Plaintiff obtained the Vehicle from FORD FAIRFIELD. (Declaration of Karyn Ihara in Support of Motion to Compel Arbitration at ¶ 2, Exhibit 1.) The agreement covers “[a]ny claim or dispute...between you [Plaintiffs] and us [FORD FAIRFIELD]...which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship.” (*Ibid.*)

The arbitration agreement covers Plaintiff’s causes of action against FORD FAIRFIELD. The lemon law claims Plaintiff asserts arise from the purchase and condition of the Vehicle. Plaintiff does not argue against the existence or application of the arbitration agreement, even in his untimely opposition.

Conclusion. FORD FAIRFIELD’s functionally unopposed motion to compel arbitration is granted. Plaintiff’s claims against FORD FAIRFIELD are ordered stayed pending completion of arbitration.

**MARSHALL TUBBS vs. COUNTY OF SOLANO GENERAL SERVICES
DEPARTMENT; ET AL.
Case No. CU25-09311**

Demurrer by COUNTY OF SOLANO GENERAL SERVICES DEPARTMENT to
Complaint

TENTATIVE RULING

In general, as a prerequisite to the filing of FEHA-based causes of action, the plaintiff must first file a charge with the DFEH (California Dept. of Fair Employment and Housing) or in more recent times the California Civil Rights Department (CRD), and then upon issuance of a right-to-sue letter, file within the applicable time a civil complaint alleging those FEHA-based causes of action. Government Code §12960; *Kim v. Konad USA Distribution, Inc.* (2014) 226 Cal.App.4th 1336, 1345 [“Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH . . . Exhaustion includes the timely filing of administrative complaints addressing the claims and parties at issue, as well as the procurement of right-to-sue letters”]; *Blum v. Superior Court* (2006) 141 Cal.App.4th 418,

422 [similar description of requirement of exhaustion of administrative remedies before bringing FEHA-based causes of action]; Medix Ambulance Serv. v. Superior Court (2002) 97 Cal.App.4th 109, 116 [same].

Plaintiff's complaint claimed that the charge he filed with the EEOC, and the EEOC's subsequently issued right-to-sue letter served to exhaust his administrative remedies.

California cases uniformly reject this argument. Foroudi v. The Aerospace Corp. (2020) 57 Cal.App.5th 992, 1001 ["the exhaustion of EEOC remedies does not satisfy the exhaustion requirements for state law claims"]; Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4th 1718, 1726-1727 [rejecting the plaintiff's "dual filing agreement" argument that an EEOC charge and right-to-sue letter sufficiently exhausts as to FEHA claims, and finding that a DFEH right-to-sue letter is a requirement before filing a complaint containing FEHA causes of action].

Plaintiff's opposition declaration attached a copy of a right-to-sue letter from the CRD, dated March 19, 2025, which confirmed that the charge Plaintiff had filed with the EEOC "is being dual filed with the [CRD] by the [EEOC]", with EEOC responsible for investigating, although CRD was immediately confirming Plaintiff's right to file a private lawsuit in state court, "within one year from the date of this notice."

Plaintiff's complaint, filed on October 10, 2025, was filed within seven months of the date of the CRD right-to-sue letter.

While Plaintiff's complaint does not contain any allegations about the CRD's right-to-sue letter, it can easily be amended to do so.

The court therefore sustains the demurrer by COUNTY OF SOLANO GENERAL SERVICES ("GS") to causes of action 1-4 of Plaintiff's complaint, all FEHA-based causes of action, with 30 days leave to file a first amended complaint to allege the CRD right-to-sue letter and reallege these four causes of action.

As to causes of action five through seven (5th cause of action for constructive discharge in violation of public policy, 6th cause of action for intentional infliction of emotional distress, and 7th cause of action for negligent supervision, hiring and retention), exhaustion of or excuse from compliance with a different administrative remedy must be alleged.

For any claim for "money or damages" against a public entity, before filing the complaint, the plaintiff must first timely present a government claim to the entity, and wait for it to be rejected or deemed rejected.

Government Code sections 905 and 945.4 . . . require, as a condition precedent to bringing suit against a local public entity, the timely presentation to the defendant of a written claim and the rejection of the claim in whole or in part . . .

Where compliance with the Tort Claims Act is required, the plaintiff must allege compliance or circumstances excusing compliance, or the complaint is subject to general demurrer. (*Dujardin v. Ventura County Gen. Hosp.* (1977) 69 Cal.App.3d 350, 355 [138 Cal.Rptr. 20]; *San Leandro Police Officers Assn. v. City of San Leandro* (1976) 55 Cal.App.3d 553, 559 [127 Cal.Rptr. 856]; see *Van Alstyne*, Cal. Government Tort Liability Practice (Cont.Ed.Bar 1980) § 5.77, p. 569, hereafter cited as *Van Alstyne*.) *Snipes v. City of Bakersfield* (1983) 145 Cal.App.3d 861, 865.

FEHA causes of action are exempt from the claims presentation requirement, as they are subject to their own pre-filing notice and investigation process.

[T]he purposes and procedures of the FEHA demonstrate a legislative intent that actions against governmental entities brought under the FEHA are to be excepted from the general requirements of the Tort Claims Act. The FEHA constitutes a comprehensive scheme for combating employment discrimination, with specific time limitations related to the remedies provided. Id. at 865.

The pre-filing notice and investigation process for FEHA claims includes the option that DFEH/CRD pursue administrative remedies on behalf of the claimant, although it often instead simply issues a right-to-sue letter to the claimant.

In order to bring an action under FEHA, an individual is required to exhaust his administrative remedies under the act. (*Commodore Home Systems, Inc. v. Superior Court*, supra, 32 Cal.3d 211, 214, 218; *Hollon v. Pierce* (1967) 257 Cal.App.2d 468, 475-476 [64 Cal.Rptr. 808].) It was the intent of the Legislature to provide an administrative forum for eliminating unlawful employment practices "by conference, conciliation, and persuasion." (Gov. Code, § 12963.7, subd. (a).) ". . . [There] is no right to sue, even after conciliation breaks down, unless the Department fails to file an accusation before the Commission. To that extent the availability of court remedies remains within the Department's control. [Also], the compliance structure of the FEHA encourages cooperation in the administrative process. While that process continues the Department acts on the victim's behalf and absorbs costs of pursuing his claim. Court action inevitably is speculative, and the FEHA makes civil suit the claimant's sole responsibility." (*Commodore Home Systems, Inc. v. Superior Court*, supra, 32 Cal.3d at p. 218.) Id. at 866-867.

Thus, FEHA causes of action are exempt from the government claims procedure, because of the special other prior notice procedure established for FEHA claims.

The above provisions demonstrate a legislative intention to exempt actions under the FEHA from the general Tort Claims Act requirements. The procedural guidelines and the time framework provided in the FEHA are special rules for this particular type of claim which control over the general rules governing claims

against governmental entities. The FEHA not only creates a statutory cause of action, but sets out a comprehensive scheme for administrative enforcement, emphasizing conciliation, persuasion, and voluntary compliance, and containing specific limitations periods. (See Tobriner, California FEPC (1965) 16 Hastings L.J. 333.) Id. at 868.

FEHA causes of action are also deemed to be primarily for injunctive relief, with money damages being "incidental" to that primary relief.

[T]he claim is not for "money or damages" within Government Code sections 905 and 945.4, and therefore not subject to demurrer for failure to comply with the Tort Claims Act. The notice of claim provisions do not apply to an action which seeks principally injunctive relief for employment discrimination. The action under the FEHA basically is nonpecuniary, the claims for damages and back pay being incidental to the claim for injunctive relief.

The general scope of the Tort Claims Act notice-of-claim provisions is limited to "claims for money or damages" (Gov. Code, §§ 905, 905.2.) This language exempts actions seeking specific relief other than money or damages, such as injunctive or declaratory relief, and certain actions in mandamus. (See Van Alstyne, *supra*, § 5.7, pp. 436-437, § 5.23, pp. 460-462; see also Gov. Code, § 814: "Nothing in this part affects . . . the right to obtain relief other than money or damages against a public entity") Because appellant's complaint clearly states a cause of action for injunctive relief, the general demurrer was sustained improperly. (See *Minsky v. City of Los Angeles*, *supra*, 11 Cal.3d 113, 121, fn. 12; *L. A. Brick etc. Co. v. City of Los Angeles* (1943) 60 Cal.App.2d 478, 486 [141 P.2d 46].)

Furthermore, an action for specific relief does not lose its exempt status solely because incidental money damages are sought. (See *People v. City of Los Angeles* (1958) 160 Cal.App.2d 494, 508 [325 P.2d 639]; *L. A. Brick etc. Co. v. City of Los Angeles*, *supra*, 60 Cal.App.2d 478, 486, cited in *Minsky*, *supra*, 11 Cal.3d at p. 121, fn. 12.) Id. at 869-870.

The 5th through 7th causes of action are not FEHA causes of action, and thus are subject to the government claims presentation requirement, not the DFEH/CRD charge filing requirement.

Plaintiff's complaint does not allege facts showing compliance with or excuse from the government claims presentation requirement.

The court therefore sustains GS's demurrer to the non-FEHA causes of action (5th cause of action for constructive discharge in violation of public policy, 6th cause of action for intentional infliction of emotional distress, and 7th cause of action for negligent supervision, hiring and retention) for failure to allege facts showing compliance with or excuse from the government claim presentation requirement.

Plaintiff's opposition declaration claims that on October 2, 2025, via email he sent written notice of his claims against the county "by email to the civil division of the Solano County Superior Court . . . , with a copy to the Clerk of the Board of Supervisors . . . " which "included a detailed formal complaint describing the workplace harassment, retaliation, discrimination, and constructive discharge I experienced while employed with the County of Solano General Services Department, along with the names of the responsible parties", and received from the Board of Supervisors "an automated acknowledgement confirming my correspondence had been received and forwarded to the appropriate office for review".

The declaration attached a copy of an email Plaintiff claims to have sent to the Board of Supervisors (and the court) to accompany what he called a Board of Supervisors complaint letter. But no copy of that "detailed letter" was attached anywhere to Plaintiff's declaration.

Even if the detailed letter had been attached, per the County's website instructions for presenting a government claim, email transmission of it to the Board of Supervisors may not have been sufficient, nor did Plaintiff wait for the claim to be rejected or deemed rejected before filing the complaint (as the letter was sent only about a week before the filing of the complaint).

While it is not clear to the court that Plaintiff can successfully allege facts sufficient to show compliance with or excuse from the government claims presentation requirement, in an abundance of caution, the court sustains GS's demurrer to these three non-FEHA causes of action, with 30 days leave to amend.

Thus, the court sustains GS's demurrer to the entirety of Plaintiff's complaint, with 30 days leave for Plaintiff to file a first amended complaint, to reallege any or all of the FEHA causes of action and the non-FEHA causes of action.

FRANCISCO ARRIAGA; ET AL. vs. SUTTER VALLEY HOSPITALS; ET AL.
Case No. CU25-09439

SUTTER SOLANO's Demurrer to First Amended Complaint

TENTATIVE RULING

Defendant SUTTER VALLEY HOSPITALS d.b.a. SUTTER SOLANO MEDICAL CENTER ("SUTTER SOLANO") demurs to the fourth cause of action, for dependent adult neglect, within Plaintiffs FRANCISCO ARRIAGA and ARACELI ARRIAGA's first amended complaint. Summarized, Plaintiffs allege that their son Roberto Carlos Arriaga Soria ("Decedent") went to SUTTER SOLANO's emergency room on October 14, 2024, nude and suffering from hypoglycemia, hypothermia, and an altered mental state. SUTTER SOLANO did not perform appropriate diagnostic tests on Decedent and

did not discover his head injuries. SUTTER SOLANO discharged Decedent after monitoring him for about five hours; Decedent died a matter of hours later.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. *Kruthanooch v. Glendale Adventist Medical Center* (2022) 83 Cal.App.5th 1109 (*Kruthanooch*) speaks directly to the situation before the court. In *Kruthanooch* a patient presented to an emergency room with weakness and lightheadedness, and a history of coronary artery disease, hypertension, hyperlipidemia, and diabetes. (*Id.* at p. 1116.) The hospital staff left ECG pads on the patient when he underwent an MRI, causing him a burn on his abdomen. (*Id.* at pp. 1116-1117.) The patient was admitted to the hospital and given IV fluids and 24-hour cardiac monitoring; he was discharged two days later. (*Id.* at pp. 1117-1118.) The patient asserted civil claims against the hospital notably including one for elder abuse, based on the MRI burn. (*Id.* at p. 1118.) Though the jury found for the patient on the elder abuse claim, the trial court granted a motion for judgment notwithstanding the verdict on the grounds that the hospital did not have a caretaking or custodial relationship with the patient. (*Id.* at p. 1119.) The Second District Court of Appeal held this correct. (*Id.* at p. 1122.) The California Supreme Court has held that the Elder Abuse and Dependent Adult Civil Protection Act requires a caretaking or custodial relationship to exist between a plaintiff and defendant, meaning a robust relationship featuring significant ongoing responsibility for one or more basic needs that a fully competent adult could handle alone. (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152 (*Winn*).) With this in mind the *Kruthanooch* court found that there was no caretaking or custodial relationship in the case under analysis as the hospital had a relationship with the patient for only a very limited duration and provided for his needs only incidentally to circumscribed medical care. (*Kruthanooch* at p. 1128.) There was no evidence that the patient, ill though he was, needed any help with basic functions. (*Id.* at pp. 1128-1129.) He was in the hospital’s care for only two days. (*Id.* at p. 1129.) This was not an “ongoing,” “robust” caretaking relationship of “significant” responsibility.” (*Ibid.*) No one explicitly assumed responsibility for the patient’s basic functions. (*Ibid.*)

Decedent in the instant case was likewise only in SUTTER SOLANO’s care for a very brief amount of time – a matter of hours, not even the couple of days of *Kruthanooch* – and was given basic care only incidentally to emergency room treatment. Plaintiffs’

arguments that a caretaking relationship was formed because Decedent was given clothes and a warm room to occupy are too general. Any hospital will give a naked patient a hospital gown. A hospital cannot help but have its patients be indoors, too. The argument that SUTTER SOLANO assumed responsibility for Decedent's care because it monitored his vital signs is likewise unavailing because it attempts to impose a caretaking relationship on routine, universal emergency room activities. Further, Plaintiffs allege that SUTTER SOLANO did precisely the opposite of assuming responsibility for Decedent's needs where its staff marked him for referral to social services. (1AC at ¶ 25.) Even acknowledging the allegations of Decedent's altered mental state the fact remains that SUTTER SOLANO did not care for Decedent's basic needs in any but the most minimal and incidental ways for any but the most fleeting and insignificant time. Plaintiffs do not state a cause of action for dependent adult neglect on account of failure to state a caretaking or custodial relationship.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiffs do not offer a directed argument as to amendment, only requesting leave to amend without demonstration of what additional facts they could allege that would cure identified defects.

Conclusion. SUTTER SOLANO's demurrer to the fourth cause of action in the first amended complaint is sustained without leave to amend.

ELAINE SCIACCA and KK&G INC. vs. AHMED ALSHERIF
Case No. CU26-02679

Anti-SLAPP Motion

TENTATIVE RULING

On the Court's own motion, the hearing will be continued. The Parties are to address what consideration, if any, should be given to the pending writ before the Court of Appeal in selecting new hearing date.

CLAUDIA GONZALEZ vs. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

The court has received supplemental briefing from Plaintiff as authorized at the July 10, 2026 hearing. The court has not received supplemental briefing from MEYER.

Legal Standard. Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or contemptible" and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code, § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid.*) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital, supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the conduct and its outrageous nature. (*Ibid.*) A plaintiff need not necessarily establish that any particular committee or officer of the corporation acted on a particular date with malice, though; it is enough if the evidence permits a clear and convincing inference that authorized persons within the corporate hierarchy acted despicably. (*Romo v. Ford*

Motor Co. (2002) 99 Cal.App.4th 1115, 1140 (*Romo*), disapproved on other grounds in *People v. Ault* (2004) 33 Cal.4th 1250, 1272 at fn. 15.) That is, a plaintiff may satisfy the “managing agent” requirement in the corporate context through evidence, even circumstantial evidence, showing information in the possession of the corporation and the structure of management decision-making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated. (*Id.* at p. 1141.)

Objections to Evidence. MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion.

MEYER’s #1-2, 17. Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

MEYER’s #13, 29-32. What Plaintiff told Ms. Luciano is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

MEYER’s #14, 42, 44, 46. What Plaintiff told Ms. Calisa is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

Likelihood of Proving Punitive Damages Against MEYER. Plaintiff’s supplemental declaration of counsel filed July 14, 2026 introduces into evidence Plaintiff’s deposition, wherein she testifies that PEREZ made statements including and not limited to the following during the course of her employment with MEYER: “men are always right,” “men are the head of the household,” “men make the rules.” This evidence of repeated harassing statements demonstrates a likelihood that it can be proven at trial that PEREZ engaged in malicious and/or oppressive harassment of Plaintiff based on her sex and/or gender, in turn supporting potentially supporting imposition of punitive damages against PEREZ.

Plaintiff’s evidence also demonstrates a likelihood of proving at trial that MEYER ratified PEREZ’s harassing conduct and so is potentially liable for punitive damages. Plaintiff notified MEYER of PEREZ’s aggressive conduct in a March 4, 2021 email to MEYER’s Vice President of Human Resources Jennifer Bledsoe. In a subsequent email on March 9, 2021 to Chris Banning, MEYER’s president, Bledsoe admitted and conveyed to Banning awareness that PEREZ’s aggressive conduct was directed at his female direct reports, suggesting animus based on sex and/or gender, and that PEREZ’s aggressive conduct was driven at least in part by cultural animus. Later that same week Banning increased PEREZ’s pay twice, providing evidence of approval of PEREZ’s conduct. When MEYER reduced its workforce for the stated reason of cost savings, Plaintiff was the only employee terminated; further, Banning approved the cost savings proposal as it was presented by PEREZ. This evidence further suggests ratification of PEREZ’s actions against Plaintiff.

The court finds that the evidence presented suffices, for purposes of the instant motion, to demonstrate that Plaintiff has a substantial probability of obtaining punitive damages against MEYER at trial based on ratification of PEREZ's harassing conduct.

Conclusion. Plaintiff's motion is granted.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWVNWVGlieXJTcGxIVHRXZz09>

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